

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC ET AL.,
RESPONDENTS.

**COMPLAINANT’S UNOPPOSED MOTION
TO MODIFY THE SCHEDULING ORDER**

Pursuant to 46 C.F.R. §§ 502.61(d) and 502.69(a), Complainant TPG Pressure, Inc. (“Complainant”), through undersigned counsel, hereby respectfully requests that the Presiding Officer extend the remaining deadlines in the Second Revised Scheduling Order, served on October 18, 2023, by a modest three weeks. Pursuant to 46 C.F.R. § 502.71(a), on January 10, 2024, Complainant conferred with counsel for Omni Logistics, LLC and Epic Freight Solutions, LLC (“Respondents”) regarding the limited extension sought, and they do not oppose the instant Motion. Complainant is cognizant of the Presiding Officer’s admonition in the October 18, 2023, order that the parties are expected to meet the existing deadlines below and should not expect any further extensions. However, in light of the technical difficulties that developed despite counsel’s diligent efforts, as set forth below, Complainant respectfully requests that this Motion be granted.

INTRODUCTION

As set forth below, despite the parties’ diligent efforts to meet the existing deadlines, good cause exists for this motion because, among other things, after Complainant’s entire legal

team's recent move to a new firm, it is experiencing technical issues transferring client files from the legacy firm. Although Complainant's legal team transitioned on January 1, 2024, they still have not received the entire files for this case and several others. This has left Complainant unable to continue preparing its brief, appendix, and proposed findings of fact, currently due January 25, 2024.

FACTS

This case concerns demurrage and other charges for 227 containers (Am. Verified Compl. at 31). During discovery, parties produced over 100,000 pages of documents and conducted depositions of four witnesses. The case files consist of thousands of pages of documents, such as depositions, transcripts, notes, exhibits, and other documents, in addition to documents produced. Complainant's legal team gave timely notice of its resignation and obtained transfer letters from Complainant so that the files could be properly transferred in a timely manner. However, technical challenges have surfaced that have prevented the transfer of Complainant's files to counsel's new firm to date. Counsel currently expects to finally have accesses to Complainant's entire file, including deposition transcripts, exhibits, and other discovery documents, by Friday, January 19, 2024.

Complainant therefore seeks a limited extension of three weeks of the deadlines set forth in the Second Revised Scheduling Order and the time for initial decision in light of the unexpected issues Complainant's counsel is facing. While Complainant understands and appreciates the Presiding Officer's admonition that a "scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril," Complainant respectfully submits that it has not cavalierly disregarded the Presiding Officer's Second Revised Scheduling Order and the instant Motion is supported by good cause.

Despite the diligence and best efforts of Complainant and its counsel, Complainant is unable to adequately prepare its brief, proposed findings of fact, and appendices by January 25, 2024, under the current circumstances. Complainant believes that an extension of all remaining deadlines is necessary for the foregoing reasons. As noted above, Complainant’s counsel reached out to Respondents’ counsel who responded that they do not oppose Complainant’s motion. As detailed above, Complainant needs the additional time it is respectfully requesting.

ARGUMENT

The Commission may extend the date by which the initial decision and the final Commission decision will be issued “for good cause shown.” 46 C.F.R. § 502.61(d). Commission precedent supports allowing sufficient time for a full development of the evidentiary record even if that relaxes adherence to a particular schedule. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (the policy and responsibility of the Commission is to ensure that justice is served, and all relevant facts are considered by the Commission).

In light of the difficulties identified above, for good cause, Complainant seeks a reasonable and modest extension of three weeks. Complainant proposes that the dates in the Revised Scheduling Order be amended as follows:

<u>Remaining Deadlines</u>	<u>Current Date</u>	<u>Proposed New Date</u>
Complainant’s brief, proposed findings of fact, and appendix.	January 25, 2024	February 15, 2024
Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	February 26, 2024	March 18, 2024

Complainant's reply brief and responses to proposed findings of fact.	March 12, 2024	April 2, 2024
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Complainant submits that these new proposed dates are reasonable under the circumstances.

CONCLUSION

For the reasons identified in this Motion, Complainant respectfully requests that the Commission modify the remaining dates on the Second Revised Scheduling Order as requested herein. Complainant's request is supported by good cause because of counsel's inability to access the substantial volume of documents necessary to continue preparing its brief and appendices, meeting such deadlines is practically impossible.

Dated: January 13, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on January 13, 2024, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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